

POLITY 22 - SPECIAL PROVISIONS - PANEL 1/12

ASCII MASTER FLOW - PANEL 1/12: CORE CONCEPT AND OWNERSHIP

PART XXI -> temporary + transitional + State-specific special provisions

ONE UNION -> ordinary federal rules + purpose-specific constitutional differences

ASYMMETRY != identical autonomy: classify each clause by State, protected field and actor

OWNER -> Articles 371-371J + bounded Article 370/35A current-law bridge

CROSS-LINK ONLY -> Fifth/Sixth Schedules (Topic 26); special classes (Topic 53)

ANSWER LINE -> Indian unity accommodates difference through bounded constitutional design.

ASCII MASTER FLOW - PANEL 2/12: ORIGIN AND TIMELINE

1956 7th Amendment s.22 substitutes Article 371; 1960 Bombay reorganisation adapts it

1962 13th -> 371A | 1969 22nd -> 371B | 1971 27th -> 371C

1973 32nd -> 371D/371E and removes Andhra Pradesh from Article 371

1974 35th -> Sikkim associate-State phase | 1975 36th -> Statehood + 371F

1986 53rd -> 371G | 1986 55th -> 371H | 1987 56th -> 371I

2012 98th -> 371J; effective 1 Oct 2013 | 2014 s.97 adapts 371D

2019 Article 370 orders/reorganisation | 2023 Supreme Court judgment.

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ASCII MASTER FLOW - PANEL 3/12: ARTICLE 371 - REGIONAL EQUITY

PRESIDENTIAL ORDER may assign Governor special responsibility for:

MAHARASHTRA -> Vidarbha + Marathwada + rest of Maharashtra

GUJARAT -> Saurashtra + Kutch + rest of Gujarat

MECHANISM -> separate boards -> annual Assembly report -> equitable development funds

-> adequate technical/vocational facilities + State-service opportunities

LIMIT -> constitutional authority does not prove a board is currently constituted.

TRAP -> Article 371 is a development-equity device, not a customary-law veto.

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ASCII MASTER FLOW - PANEL 4/12: ARTICLE 371A - NAGALAND

ASSEMBLY-RESOLUTION SHIELD covers only:

- 1 religious/social practices | 2 customary law/procedure
- 3 civil/criminal justice involving decisions under customary law
- 4 ownership/transfer of land AND its resources

SEPARATE CLAUSES -> earmarked Union grants; conditional Governor law-order responsibility

TUENSANG -> 35-member Regional Council and special administration for base ten years

from 1 Dec 1963, extendable by notified Governor action

LIMIT -> historical transition is not a perpetual general veto over Parliament.

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ASCII MASTER FLOW - PANEL 5/12: COMMITTEE MODELS - 371B AND 371C

371B ASSAM -> President may create Assembly committee:

members elected from Sixth-Schedule Part I tribal areas + specified other MLAs

and may modify Assembly procedure for its functioning

371C MANIPUR -> President may create Hill Areas Committee and modify business/procedure

Governor -> special responsibility + annual/on-demand report to President

Union -> may direct State on administration of declared Hill Areas

TRAP -> legislative committees are not Sixth Schedule autonomous councils.

ASCII MASTER FLOW - PANEL 6/12: ARTICLE 371D/371E - LOCAL OPPORTUNITY

371D -> President may secure equitable public-employment and education opportunity

TOOLS -> local cadres + local areas + residence/study-based preference or reservation

2014 AP Reorganisation Act s.97 -> applies framework separately to AP and Telangana

TELANGANA -> G.S.R. 820(E), 29 Aug 2018; republished G.O.Ms.124, 30 Aug 2018

ANDHRA PRADESH -> S.O.5777(E), 15 Dec 2025; republished G.O.Ms.45, 20 Apr 2026

371E -> Parliament may establish a Central University in Andhra Pradesh

TRAP -> 371E is enabling power, not the local-reservation mechanism.

ASCII MASTER FLOW - PANEL 7/12: TRIBUNAL HISTORY UNDER ARTICLE 371D

371D(3)-(4) -> President could constitute tribunal for specified service matters

371D(5) -> State confirmation/annulment mechanism

P. SAMBAMURTHY (1987) -> clause (5), including proviso, void:

executive veto over adjudication violated rule of law/basic structure

371D(7) text excluded High Court superintendence; later tribunal doctrine restored review

371D(8) -> President may abolish tribunal and transfer pending cases

G.S.R. 30(E), 14 Jan 2020 -> AP Administrative Tribunal abolished

LIMIT -> tribunal history must not be presented as the current opportunity framework.

ASCHII MASTER FLOW - PANEL 8/12: ARTICLE 371F - SIKKIM INTEGRATION

35th Amendment, 1974 -> Article 2A + old Tenth Schedule: associate-State phase

36th Amendment, 1975 -> full Statehood; omitted associate-State scheme; inserted 371F

CURRENT CORE -> Assembly at least 30; Parliament may protect population sections

CONTINUITY -> existing High Court, courts, authorities, property and laws continued

GOVERNOR -> discretion for peace and equitable advancement, subject to President

PRESIDENT -> two-year adaptation power for old laws; extension of other State enactments

R.C. POU DYAL (1993) -> historically tailored representation largely sustained.

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ASCII MASTER FLOW - PANEL 9/12: 371G, 371H AND 371I

371G MIZORAM -> Assembly resolution needed for Parliamentary laws on:

Mizo practices | customary law/procedure | customary justice | land ownership/transfer

PRE-COMMENCEMENT CENTRAL ACTS saved; Assembly minimum 40

371H ARUNACHAL -> Governor consults ministers, then individual judgment on law/order;

President may terminate responsibility; Assembly minimum 30

371I GOA -> Assembly minimum 30; no land/custom shield or Governor discretion

TRAP -> similar Statehood-era origins did not produce identical constitutional designs.

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ASCI MASTER FLOW - PANEL 10/12: ARTICLE 371J - KALYANA KARNATAKA

Constitutional text names HYDERABAD-KARNATAKA; official current usage: KALYANA KARNATAKA

PRESIDENTIAL ORDER may assign Governor responsibility for:

development board + annual Assembly report + equitable funds + opportunity

371J(2) may reserve a proportion of regional education/training seats

and identified State-controlled posts for persons belonging by birth or domicile

2013 State notifications operationalise employment/admission/certificate machinery

LIMIT -> Constitution fixes no universal percentage; current rules/orders control details.

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ASCI MASTER FLOW - PANEL 11/12: ARTICLE 370/35A - BOUNDED OWNER BRIDGE

1947 accession -> Article 370 application mechanism -> 1954 Order inserts Article 35A

5 Aug 2019 C.O.272 applies Constitution comprehensively and supersedes 1954 framework

6 Aug 2019 C.O.273 renders Article 370 inoperative except modified clause (1)

31 Oct 2019 -> J&K UT with legislature + Ladakh UT without legislature

IN RE ARTICLE 370 (11 Dec 2023) -> temporary character; no separate sovereignty;

Article 367 substitution ultra vires to stated extent; result and C.O.273 upheld

LIMIT -> J&K State-to-UT validity not finally decided; Ladakh creation upheld.

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ASCII MASTER FLOW - PANEL 12/12: TRAPS AND MAINS ANSWER SPINE

NEVER FLATTEN -> development | consent shield | committee | local opportunity
integration | law-order responsibility | minimum Assembly size

NEVER MERGE -> constitutional text | amendment | Presidential order | statute
State implementation | judgment | dated current status

ANSWER -> define asymmetry -> timeline -> classify provision -> name actor
-> decode mechanism -> cite amendment/order/case -> evaluate benefit
-> qualify implementation, equality and judicial-review limits

CONCLUSION -> calibrated difference can deepen unity when transparent and reviewable.